

Court No. - 3

Case :- WRIT - C No. - 59829 of 2011

Petitioner :- Bhim Singh

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Raj Kumar "Dhama"

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Amitava Lala,J.

Hon'ble Vinay Kumar Mathur,J.

Heard Mr. Raj Kumar "Dhama", learned counsel appearing for the petitioner and Mr. Pankaj Shukla, learned counsel appearing for the respondents.

The dispute appears to be with regard to tariff charges. The grievance of the petitioner is whether the charge is liable to be paid for the rural area or urban area. We are of the view that as per the new regulation, Consumer Redressal Grievance Forum and under Clause 7.10 of the U.P. Electricity Supply Code, 2005 remedy is available to the petitioner. Such type of dispute should not be adjudicated by the Writ Court having no evidences, material for the purpose of ascertaining the disputed question of facts but to refer the matter to such forum.

Against this background, we dispose of the writ petition at the stage of admission upon direction to the petitioner to make an application before the Forum and/or Ombudsman under Clause 7.10 of U.P. Electricity Supply Code, 2005 and if it is made, the same will be heard and disposed of upon giving fullest opportunity of hearing and by passing a reasoned order thereon within a period of one month from the date of communication of the order.

No order is passed as to costs.

Order Date :- 18.10.2011

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